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IN THE COURT OF CRIMINAL APPEALS OF TENNESSEE

AT KNOXVILLE

ORIGINAL

STATE OF TENNESSEE,	)	
	)	
Appellant,	)	
	)	KNOX COUNTY
v.	)	No. E2013-02309-CCA-R9-CD
	)	
CORRIN REYNOLDS,	)	
	)	
Appellee.	)	

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ON APPEAL BY PERMISSION FROM THE JUDGMENT
OF THE KNOX COUNTY CRIMINAL COURT

BRIEF OF THE STATE OF TENNESSEE

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ORAL ARGUMENT REQUESTED

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TABLE OF CONTENTS

STATEMENT OF THE ISSUE PRESENTED FOR REVIEW 1

STATEMENT OF THE CASE 2

STATEMENT OF THE FACTS 5

ARGUMENT 13

I. BECAUSE THE PROOF ACCREDITED BY THE TRIAL COURT ESTABLISHES THAT THE OFFICER HAD BOTH ACTUAL AND IMPLIED CONSENT TO DRAW A SAMPLE OF THE DEFENDANT'S BLOOD, THE BLOOD TEST RESULTS ARE ADMISSIBLE AT TRIAL AND SHOULD NOT HAVE BEEN SUPPRESSED. 13

A.. Under the totality of the circumstances, the State established that the defendant gave voluntary consent to the blood draw. 15

B. .Even if the defendant had not given actual consent, she gave implied consent to a test of her blood by operating a motor vehicle, and the officer lawfully requested the blood sample under the facts presented. 17

II. ADDITIONALLY, BASED UPON THE FACTS BEFORE THE TRIAL COURT, THE WARRANTLESS BLOOD DRAW WAS SUPPORTED BY EXIGENT CIRCUMSTANCES. 21

CONCLUSION 24

CERTIFICATE OF SERVICE 25

TABLE OF AUTHORITIES

CASES

Missouri v. McNeely,
133 S.Ct. 1552 (2013) ..... *passim*

Schmerber v. California,
384 US. 757 (1966) 2221, 23

Skinner v. Ry. Labor Executives' Assn.,
489 U.S. 602 (1989) 14

State v. Bartram,
925 S.W.2d 227 (Tenn. 1996) 14

State v. Blackwood,
713 S.W.2d 677 (Tenn. Crim. App. 1986) 14

State v. Cox,
171 S.W.3d 174 (Tenn. 2005) 13, 14, 15

State v. Humphreys,
70 S.W.3d 752 (Tenn. Crim. App. 2001) 18, 20

State v. Michael Shayne Cochran,
No. M2006-02175-CCA-R3-CD, 2007 Tenn. Crim. App. LEXIS 785
(Tenn. Crim. App. June 19, 2007) 14

State v. Odom,
928 S.W.2d 18 (Tenn. 1996) 13

State v. Rodney Evans,
No. E2013-00180-CCA-R3-CD, 2014 Tenn. Crim. App. LEXIS 318 (Tenn. Crim.
App. Apr. 4, 2014) 17

State v. Shirley Larhonda Gagne,
No. E2009-02412-CCA-R3-CD, 2011 Tenn. Crim. App. LEXIS 386
(Tenn. Crim. App. May 31, 2011), *no Rule 11 app. filed* 18

State v. Simpson,
968 S.W.2d 776 (Tenn. 1998) 14

State v. Walton,
41 S.W.3d 75 (Tenn. 2001) 13

State v. Yeargan,
958 S.W.2d 626 (Tenn. 1997) 13, 14

STATUTES

Tenn. Code Ann. § 55-10-406(a) 18

Tenn. Code Ann. § 55-10-406(a)(3) 18

Tenn. Code Ann. § 55-10-406(d) 19

Tenn. Code Ann. § 55-10-406(e) 19

Tenn. Code Ann. § 55-10-406(f) 19

Tenn. Code Ann. § 55-10-406(f)(1) 21

OTHER AUTHORITIES

U.S. Const. amend. IV 1, 13

Tenn. Const. art. I, § 7 ..... 1, 13, 14

Tenn. R. App. P. 9 4

STATEMENT OF THE ISSUE PRESENTED FOR REVIEW

Because the proof accredited by the trial court establishes that the officer had both actual and implied consent to conduct the blood draw after the defendant's automobile crash, are the blood testing results admissible in the defendant's trial, or are they barred in some way by the Fourth Amendment of the United States Constitution, Article I, Section 7 of the Tennessee Constitution, or some other authority?

STATEMENT OF THE CASE

On the evening of October 29, 2011, the defendant, Corrin Kathleen Reynolds, was driving a vehicle in Heiskell, Tennessee when she struck a light pole head on. (I, 19, 22, 25, 28, 42.)[1] The collision resulted in the deaths of two of the defendant's three passengers. (I, 25.) On April 17, 2012, the Knox County Grand Jury charged the defendant by presentment with two counts of vehicular homicide by intoxication, one count of vehicular assault, one count of reckless endangerment, one count of DUI *per se*, and three alternative counts of DUI. (I, 1-5.) On December 11, 2012, the defendant filed a motion to suppress evidence gleaned from blood drawn from her in the hospital hours after the collision, on the basis that the blood was drawn "without the consent of the defendant" and "without probable cause." (I, 13-15.)

At an evidentiary hearing conducted on the motion on April 5, 2013, before the Honorable Steven W. Sword, Criminal Court Judge, Officer Lee Strzelecki was called as a witness to testify. (II, 1-26.) On May 1, 2013, the defendant filed certain medical records to rebut the State's position on her consent to the blood draw. (I, 16-42.) The defendant filed a second motion to suppress on May 8, 2013, arguing that (1) the defendant did not consent to the blood draw, (2) the statutory authority authorizing a mandatory blood draw in this case cannot be justified under *Missouri*

[1] References to the record will be indicated by volume, as marked thereon by the appellate court clerk, and by page number.

v. McNeely, 133 S.Ct. 1552 (2013), and (3) the chain of custody for the blood draw has not been shown. (I, 51-53.)

In its findings of fact and conclusions of law entered on May 14, 2013, the trial court denied the defendant's motion to suppress the blood testing results, concluding that the defendant gave both actual consent and implied consent to the blood draw. (I, 54-65.) The court also denied relief on the defendant's claim that she was deprived of an opportunity for independent testing and her claim that a chain of custody has not been established. (I, 54-65.)

On July 29, 2013, the defendant filed a third motion to suppress and a motion for additional discovery, arguing that the defendant could not have given informed consent to the blood draw, based upon a report generated by Dr. John Robertson, a psychiatrist. (I, 66-68.) On August 22, 2013, the defendant filed notice of reciprocal discovery, specifically a report by Dr. H. Grady Arnold, Jr. (I, 69-76.)

At a second suppression hearing on August 30, 2013, Dr. Robertson testified for the defense, and the trial court recalled Officer Strzelecki for further testimony. (IV, 7-53.) In its findings of fact and conclusions of law entered on September 4, 2013, the trial court suppressed the results of the defendant's blood testing, concluding that (1) implied consent could not be supported because at the time of the request for a blood draw, the officer did not have reasonable grounds to believe that the defendant had been operating her motor vehicle while under the influence, and (2) the defendant's statement "do whatever you have to do" did not amount to actual consent to the blood draw. (I, 91-99.)

On October 4, 2013, the State filed a motion for permission to appeal and for a stay of proceedings, under Tenn. R. App. P. 9. (I, 100-16.) In an order filed October 7, 2013, the trial court granted an interlocutory appeal under Rule 9 and stayed further proceedings until resolution of the appeal. (I, 117.) On December 19, 2013, this Court granted the State's application for permission to appeal pursuant to Rule 9. (I, 118-20.)

STATEMENT OF THE FACTS

First Suppression Hearing

At the first suppression hearing, Officer Lee Strzelecki from the crash reconstruction team in the Knox County Sheriff's Department testified that in the evening on October 29, 2011, he was paged out regarding a single vehicle crash with multiple occupants and two possibly deceased individuals. (II, 1-2.) He left his home and went immediately to UT Hospital in Knoxville, and from information provided to him by other officers, he made contact with the two surviving members of the crash, the defendant and another victim. (II, 2-3, 12-13.) He "proceeded to make contact with both of them and decide if [he] needed to get blood draws, and as there were two confirmed fatalities, it would have been mandatory under [their] investigation." (II, 3.)

When he arrived at the hospital, Officer Strzelecki was not 100 percent certain which surviving occupant was the driver. As a precaution, he requested blood samples from both. (II, 14.) He met first with Shawn Page, who stated that the defendant was the driver, and Page agreed to a blood draw. (II, 14.)

When Officer Strzelecki spoke with the defendant, she was "on a gurney waiting . . . to be x-rayed or came from x-ray, and she was alert and conscious and was talking" to him. (II, 3.) She was cooperative. (II, 13.) Other persons were around. (II, 25.) He did not provide *Miranda* warnings at this time. (II, 13.) He did not handcuff her, nor did he tell her that she was not free to leave or to not talk

to him. (II, 25.) But if she had attempted to walk away from him, he would not have allowed her to leave prior to him talking with her. (II, 25-26.)

Officer Strzelecki "was only able to have a brief discussion because there was a lot of commotion with the ER, but she stated that she had been driving and that everybody in the car had been drinking." (II, 3.) He performed the horizontal gaze nystagmus test. (II, 3, 8.) He testified as follows about her performance in that test:

> She exhibited all six clues, and the six clues in the test are distinct and sustained nystagmus at maximum deviations, and if I can elaborate a little further, maximum deviation is I take their vision out as far as they can see and hold it there for a minimum of four seconds, and you'll continue to see the eye twitch, and that's maximum deviation. The other test is—that's one clue for each eye. The other test is lack of smooth pursuit, and I'm ta[l]king about a two-second pass in front of each eye, watching for that lack of smoothness where the eye is jerking back and forth. And then the last part of the test is onset of nystagmus prior to 45 degrees. So I go from 12 inches out, and I go up to about a 45 degree angle and observe the person's eyes and watch for that onset to begin before I get to that 45 degree point, and Ms. Reynolds exhibited all six clues.

(II, 8-9.) The defendant indicated that all the occupants of the car had been drinking, including herself. (II, 3, 9.)

Officer Strzelecki asked the defendant if she would provide a blood sample, and she responded, "Do whatever you have to do." (II, 9.) He then called for a phlebotomist, who drew two bottles off blood in his presence, using a TBI blood kit that Officer Strzelecki provided. (II, 10-11, 18-19.) The phlebotomist labeled the two vials and placed them in the box, and the officer filled out the paperwork, put it in the box, and sealed the box. (II, 10, 18-19, 21-22.) He testified that the

phlebotomist used a Betadine swab before inserting the needle because an alcohol pad cannot be used before taking blood to be tested for alcohol. (II, 20-21.) He took the box to the scene of the crash and gave it to a forensic technician, pursuant to normal policy in the sheriff's department. (II, 11.)

Officer Strzelecki testified as follows about the procedure followed for requesting a blood sample:

> If a person consents, the procedure is we can get a blood draw. If the person refuses, at that point the implications of the implied consent violation are read to that person, and they're given another opportunity if they want to change their mind and decide to consent.

(II, 15.) Because the defendant agreed to the blood draw, he did not read the form to her. (II, 15-16.) He testified that the reason for the blood draw was "[t]he consent and the fact that . . . it was a double fatality." (II, 16.) In addition, he smelled alcohol on the defendant, and she admitted to drinking and to driving the vehicle. (II, 16.)

Second Suppression Hearing

At the second suppression hearing, Dr. John Burr Robertson testified that he is a psychiatrist and that he reviewed medical records from the defendant to determine if she could give voluntary, knowing and intelligent consent for the blood draw. (IV, 7-8.) He recounted the defendant's multiple injuries and the medications that she took. (IV, 11-18.) He opined that the defendant could not have given informed consent to have her blood drawn, explaining his opinion as follows:

> Well, first you've got the head injury even before she has any medication, and then to the extent that she is no longer dazed and confused by such a traumatic physical injuries and loss of consciousness related to the head injury. Then she's got the psychological trauma of looking around and seeing people, bodies, dead and all the ambulance and the Life Star coming in picking her up. So you got all of this psychological trauma compounded on top of that, and then on the way, you've got these medications within minutes of getting—as soon as they can get an IV in, they're giving her something, and so they get the IV in, they give her some medicine to calm her down, to control the pain, and then she hits the ER, and then she's not calm enough. So—she's combative, and so they've got to give her more medication to calm her down, and each of these times they're not giving it for the heck of it, but she's getting—levels of agitation starting to go back up. The medicine's not wearing off. It's just that she requires quite a bit of medication here, and this is—this is enough to put someone down.

(IV, 19, 38.)

Officer Strzelecki was recalled by the trial court, and under questioning by the court, he described his exchange with the defendant as follows:

> She was on a gurney on her back in the ER. She was clam and alert, and when I approached her, I was standing over her. So she was on her back, and I was looking down.

(IV, 45-46.) He testified that he did not know at that time that the defendant is deaf. (IV, 46.)

Officer Strzelecki identified himself and asked how she was doing. (IV, 47.) The defendant was responding verbally, and their interaction was "very brief." (IV, 46.) By the time he engaged the defendant, he had already spoken in the ER with the passenger, who identified the defendant as the driver of the vehicle. (IV, 46, 51.) Officer Strzelecki asked the defendant if she was the driver, and she either nodded or said yes, confirming that she was the driver. (IV, 46-47.) He smelled

alcohol on her, and he asked if she would consent to the blood draw. (IV, 46.) She responded, "Do what you have to do." (IV, 46.) During the conversation, he was doing the horizontal gaze nystagmus test and observed the six clues for the test. (IV, 47.) "Both of her eyes . . . were open. Both [of] her pupils were equal, and her eyes were tracking normally." (IV, 47.)

It took the phlebotomist about 15 minutes to arrive, and during that time he remained in the ER area in sight of the defendant. (IV, 48.) She was calm and cooperative the whole time that Officer Strzelecki was there. (IV, 48.) He did not see any conversations between the defendant and anyone else, and the nursing staff appeared more concerned with other patients, "[l]ike they had her stabilized and were focusing their attention on some other individuals that were in the ER at the time." (IV, 48-49.)

On cross-examination, Officer Strzelecki explained that he first received a page regarding the defendant's car crash around 9:04 p.m. (IV, 50-51.) He then responded to the hospital. (IV, 51.) Once there, Officer Strzelecki first spoke to Page, who did not arrive at the hospital until 9:53 p.m. (IV, 51.) The officer was able to request consent for a blood draw from the defendant at approximately 10:25 p.m. (IV, 52.)

Records admitted as an exhibit at the second suppression hearing showed that Rural/Metro Ambulance received information about the defendant's car crash at 8:43 p.m. on October 29, 2011. (I, 19; IV, Ex. 1, Vol. 1.) The ambulance service arrived at the crash scene at 8:51 p.m. (I, 19; IV, Ex. 1, Vol. 1.) The defendant had

to be extracted from the vehicle and then flown by Lifestar to the UT Medical Center, where she arrived was received in the emergency department at 9:36 p.m. (I, 25-33; IV, Ex. 1, Vol. 1.) At 10:25 p.m., the defendant went to x-ray and was noted to be "more alert." (I, 35; IV, Ex. 1, Vol. 1.) The defendant's blood was drawn at 10:50 p.m. (I, 37; IV, Ex. 1, Vol. 1.)

In its order suppressing the results of the defendant's blood testing, the trial concluded that implied consent could not be supported because at the time of the request for a blood draw, the officer did not have reasonable grounds to believe that the defendant had been operating her motor vehicle while under the influence. (I, 94-95.) The court found that Officer Strzelecki only observed the defendant for a few minutes in the emergency room; the defendant was on a gurney so he could not tell if she was unsteady on her feet. (I, 95.) The court reasoned that although the officer was aware there had been a crash with two deaths, "[n]o evidence was presented to indicate that the nature of the accident gave him reason to believe the driver was under the influence." (I, 95.) The officer noticed an odor of alcohol about the defendant, but he did not testify that her eyes were blood shot or speech slurred. (I, 95.) The court found that the defendant's performance on the horizontal gaze nystagmus "indicated . . . that she was impaired," but no other field sobriety tests were performed. (I, 95.) The trial court appeared to conclude that the State must not have thought it had probable cause because it did not charge the defendant with vehicular homicide until April 2012. (I, 95.) Based upon these findings, the trial court concluded, "The circumstances of this case indicate that the officer did not

have reasonable grounds to believe that the defendant was driving under the influence. Therefore, the State cannot rely on implied consent to justify the search and seizure of the defendant's blood."

The trial court also found that under the totality of the circumstances, the State failed to prove actual consent to the blood test on the part of the defendant. (I, 96-99.) In its review of Dr. Robertson's testimony, the court found that Dr. Robertson was not a pharmacologist; never interviewed the defendant or conducted any tests on her intelligence; and did not speak to doctors or nurses in the emergency who actually treated the defendant. (I, 97.) Dr. Robertson testified that the medications provided to the defendant at the hospital were intended to have a "calming effect on the patient and make them more complaint." (I, 97.) However, the defendant's expert could not testify "as to the exact effects the medications were in fact having on this particular defendant when the officer spoke to her." (I, 97.) The court found that it was "not clear to what extent the medications affected [the defendant's] free will and conscious thought." (I, 97.) The court concluded from the medical records that the medications were having "some effect on the defendant" because she calmed down and appeared to be sleeping after medication was administered. (I, 97.)

Regarding the defendant's interactions with Officer Strzelecki, the trial court specifically accredited the testimony of the officer. (I, 98.) The court found that the defendant was conscious and alert when speaking Officer Strzelecki. (I, 97.) However, the officer did not explain to the defendant that she could refuse the test.

(I, 98.) Additionally, although the defendant acknowledged to the officer that she had been driving the car, the defendant "only spoke one sentence" during the brief conversation. (I, 98.) The court further noted that the defendant had "some degree of hearing impairment that interferes with her ability to communicate." (I, 98.) Ultimately, the court concluded that the State failed to prove by a preponderance of the evidence that the statement gave actual consent for a sample of her blood to be taken for testing. (I, 99.) The court reasoned, "It is just as likely that the defendant was complying with any request made of her due to the medication. Her one sentence response of acquiescence is insufficient to prove she was specifically consenting to a search of her blood." (I, 99.)

ARGUMENT

I. BECAUSE THE PROOF ACCREDITED BY THE TRIAL COURT ESTABLISHES THAT THE OFFICER HAD BOTH ACTUAL AND IMPLIED CONSENT TO DRAW A SAMPLE OF THE DEFENDANT'S BLOOD, THE BLOOD TEST RESULTS ARE ADMISSIBLE AT TRIAL AND SHOULD NOT HAVE BEEN SUPPRESSED.

Neither the Fourth Amendment of the United States Constitution nor Article I, Section 7 of the Tennessee Constitution requires the exclusion of the defendant's blood test results in this case. Consent is an exception to the warrant requirement, and the proof accredited by the trial court establishes that defendant gave both actual and implied consent to the blood draw. Thus, the trial court erred in suppressing the results of the blood alcohol testing.

It is well-established that "'a trial court's findings of fact in a suppression hearing will be upheld unless the evidence preponderates otherwise.'" *State v. Cox*, 171 S.W.3d 174, 178 (Tenn. 2005) (quoting *State v. Odom*, 928 S.W.2d 18, 23 (Tenn. 1996)). "Questions of credibility of the witnesses, the weight and value of the evidence, and resolution of conflicts in the evidence are matters entrusted to the trial judge as the trier of fact." *Odom*, 928 S.W.2d at 23. The prevailing party "is entitled to the strongest legitimate view of the evidence adduced at the suppression hearing as well as all reasonable and legitimate inferences that may be drawn from that evidence." *Id.* However, this Court's review of a trial court's application of the law to the facts is *de novo* with no presumption of correctness. *State v. Walton*, 41 S.W.3d 75, 81 (Tenn. 2001) (citing *State v. Crutcher*, 989 S.W.2d 295, 299 (Tenn. 1999); *State v. Yeargan*, 958 S.W.2d 626, 629 (Tenn. 1997)).

"Like typical search and seizure cases, a case involving the collection of a blood sample and the chemical analysis of that sample are subject to the constitutional limitations of the Fourth Amendment and Article I, Section 7 of the Tennessee Constitution, which protect against unreasonable searches and seizures." *State v. Michael Shayne Cochran*, No. M2006-02175-CCA-R3-CD, 2007 Tenn. Crim. App. LEXIS 785, at *7 (Tenn. Crim. App. June 19, 2007) (citing *State v. Scarborough*, 201 S.W.3d 607, 616 (Tenn. 2006), *no Rule 11 app. filed*; *see also Skinner v. Ry. Labor Executives' Assn.*, 489 U.S. 602, 616 (1989); *State v. Blackwood*, 713 S.W.2d 677, 679 (Tenn. Crim. App. 1986). "[U]nder both the federal and state constitutions, a warrantless search or seizure is presumed unreasonable, and evidence discovered as a result thereof is subject to suppression unless the State demonstrates that the search or seizure was conducted pursuant to one of the narrowly defined exceptions to the warrant requirement." *Yeargan*, 958 S.W.2d at 629 (citation omitted); *Missouri v. McNeely*, 133 S.Ct. 1552, 1558 (2013) (stating that "[a] warrantless search of the person is reasonable only if it falls within a recognized exception" to the warrant requirement). The State has the burden to establish by a preponderance of the evidence that a warrantless search or seizure is constitutional. *See, e.g., State v. Simpson*, 968 S.W.2d 776, 780 (Tenn. 1998).

One exception to the search warrant requirement is consent. *State v. Bartram*, 925 S.W.2d 227, 230 (Tenn. 1996). In order for a consensual search to be constitutional, "it must be 'unequivocal, specific, intelligently given, and uncontaminated by duress or coercion." *Cox*, 171 S.W.3d at 184 (quoting *Simpson*,

968 S.W.2d at 784). "'The existence of consent and whether it was voluntarily given are questions of fact' which require examining the totality of the circumstances." *Id.* at 184-85 (quoting *State v. Ashworth,* 3 S.W.3d 25, 29 (Tenn. Crim. App. 1999)). Courts look to several factors to determine voluntariness, including:

> (1) Time and place of the encounter; (2) Whether the encounter was in a public or secluded place; (3) The number of officers present; (4) The degree of hostility; (5) Whether weapons were displayed; (6) Whether consent was requested; and (7) Whether the consenter initiated contact with the police.

Cox, 171 S.W.3d at 185.

A. Under the totality of the circumstances, the State established that the defendant gave voluntary consent to the blood draw.

Under the totality of the circumstances, the State demonstrated that the defendant gave actual consent to the blood draw. (I, 96-99.) Officer Strzelecki's testimony[2] established that the defendant was conscious and alert when speaking with him. (I, 97.) When Officer Strzelecki spoke with the defendant, she was "on a gurney waiting . . . to be x-rayed or came from x-ray, and she was alert and conscious and was talking" to him. (II, 3.) Medical records indicate that at this time, the defendant was "more alert." (I, 35; IV, Ex. 1, Vol. 1.) Officer Strzelecki identified himself and asked the defendant how she was doing. (IV, 47.) The defendant was cooperative and was responding verbally to the officer. (II, 13; IV, 46.) Officer Strzelecki's interaction with the defendant was brief, but during his questioning, the defendant indicated that all the occupants of the car had been drinking, including herself. (II, 3, 9, 16.) The defendant also admitted that she had

[2] The trial court specifically accredited the testimony of Officer Strzelecki. (I, 98.)

been driving. (I, 98; II, 3, 16; IV, 46-47.) The officer requested consent from the defendant for a blood draw, and she responded, "Do whatever you have to do." (II, 9; IV, 46.) Officer Strzelecki did not handcuff the defendant, nor did he tell her that she was not free to leave or to not talk to him. (II, 25.) There was no testimony that the officer displayed his weapon or that any additional officers were present. The officer's interaction with the defendant took place in a public area where other people were around. (II, 25.) Although the defendant had "some degree of hearing impairment," the officer was able to communicate with her. (I, 98; IV, 46-48.) Moreover, the defendant's medical records establish that she was able to communicate with hospital personnel and did not need an interpreter. (IV, Ex. 1, Vol. 2, p. 78 of 212.) Under these facts, the State established that the defendant's consent to the blood draw was voluntarily given, and the trial court improperly suppressed the results of the blood testing.

Furthermore, Dr. Robertson's testimony did not establish that the defendant was incapable of refusing consent. First, while Dr. Robertson testified that the medications provided to the defendant at the hospital were intended to have a "calming effect on the patient and make them more complaint," the trial court found that the defendant's expert was not the treating physician and could not testify "as to the exact effects the medications were in fact having on [the] defendant when the officer spoke to her." (I, 97.) From Dr. Robertson's testimony, the court could not find "to what extent the medications affected [the defendant's] free will and conscious thought." (I, 97.)

Moreover, consent for law enforcement purposes and medical purposes are based on two entirely different standards. In *State v. Rodney Evans,* No. E2013-00180-CCA-R3-CD, 2014 Tenn. Crim. App. LEXIS 318 (Tenn. Crim. App. Apr. 4, 2014), this Court rejected the defendant's claim that he did not give valid consent to a blood test based upon the medications he had been given at the time he consented to the test. *Rodney Evans,* 2014 Tenn. Crim. App. LEXIS 318, at *31-32 (citing *Ferguson v. City of Charleston,* 308 F.3d 380, 395-97 (4th Cir. 2002)). The defendant in that case had been given the same medications as the defendant in the instant case—Morphine and Versed. *Id.*, at *9-12. He also presented testimony from two doctors that based upon these medications, he had been unable to given informed consent. *Id.* Recognizing that consent for law enforcement purposes and consent medical purposes are based on two entirely different standards, the Court found that "the defendant's attempt to have this Court construe valid consent under the standard used for medical procedures is misguided." *Id.*, at *31-32. Just as in *Rodney Evans,* the defendant in the instant case was capable of giving actual consent to the legal blood test.

B. Even if the defendant had not given actual consent, she gave implied consent to a test of her blood by operating a motor vehicle, and the officer lawfully requested the blood sample under the facts presented.

Even if the defendant had not given actual consent, she gave implied consent to a test of her blood by operating a motor vehicle, and the officer lawfully requested the blood sample under the facts presented. Pursuant to the implied consent statute, "anyone who exercises the privilege of operating a motor vehicle in this

state has consented in advance to submit to a breath alcohol test." *State v. Humphreys*, 70 S.W.3d 752, 761 (Tenn. Crim. App. 2001). That statute provides:

> Any person who drives a motor vehicle in this state is deemed to have given consent to a test or tests for the purpose of determining the alcoholic content of that person's blood, a test or tests for the purpose of determining the drug content of the person's blood, or both tests. However, no such test or tests may be administered pursuant to this section, unless conducted at the direction of a law enforcement officer having reasonable grounds to believe the person was driving while under the influence of alcohol, a drug, any other intoxicant or any combination of alcohol, drugs, or other intoxicants as prohibited by § 55-10-401, or was violating § 39-13-106, § 39-13-213(a)(2) or § 39-13-218.

Tenn. Code Ann. § 55-10-406(a).

The statute further provides that a driver may generally refuse consent to a blood alcohol test and be subject to a violation of the implied consent law.[3] The relevant provision states: "Except as required by subsection (f), court order or search warrant, if such person is placed under arrest, requested by a law enforcement officer to submit to either or both tests, advised of the consequences for refusing to do so, and refuses to submit, the test or tests to which the person refused shall not be given, and the person shall be charged with violating this subsection

---

[3] Although Tennessee's implied consent statute expands the protection provided by federal and state constitutions by providing that, in most circumstances, a person charged with driving under the influence may refuse to submit to blood alcohol testing and the tests shall not be given, *see* Tenn. Code Ann. § 55-10-406(a)(3), that protection is not constitutional in nature. *Humphreys*, 70 S.W.3d at 761; *see also State v. Shirley Larhonda Gagne*, No. E2009-02412-CCA-R3-CD, 2011 Tenn. Crim. App. LEXIS 386 (Tenn. Crim. App. May 31, 2011), *no Rule 11 app. filed.* "Rather, the State of Tennessee, through its enactment of [the provisions allowing the right of refusal in most cases] has adopted a policy position prohibiting law enforcement officers from administering a breath or blood alcohol test against the motorist's will." *Humphreys*, 70 S.W.3d at 761. This enactment was made "in an effort to avoid potentially violent confrontations between private citizens and law enforcement officers, the state has elected to permit the motorist to refuse the test." *Id.* (citations omitted).

(a). Section (f) lists the following exceptions to the defendant's right to refuse consent:

> (f)(1) If a law enforcement officer has probable cause to believe that the driver of a motor vehicle involved in an accident resulting in the injury or death of another has committed a violation of § 39-13-213(a)(2) [vehicular homicide], § 39-13-218 [aggravated vehicular homicide], or § 55-10-401 [DUI], the officer shall cause the driver to be tested for the purpose of determining the alcohol or drug content of the driver's blood. The test shall be performed in accordance with the procedure set forth in this section and shall be performed regardless of whether the driver does or does not consent to the test; or
>
> (2) If a law enforcement officer has probable cause to believe that the driver of a motor vehicle has committed a violation of § 39-13-213(a)(2) [vehicular homicide], § 39-13-218 [aggravated vehicular homicide] or § 55-10-401 [DUI] and has been previously convicted of § 39-13-213(a)(2), § 39-13-218 or § 55-10-401 the officer shall cause the driver to be tested for the purpose of determining the alcohol or drug content of the driver's blood. The test shall be performed in accordance with the procedure set forth in this section and shall be performed regardless of whether the driver does or does not consent to the test.
>
> (3) If a law enforcement officer has probable cause to believe that the driver of a motor vehicle has committed a violation of § 39-13-213(a)(2), § 39-13-218 or § 55-10-401 and a passenger in the motor vehicle is a child under sixteen (16) years of age, the officer shall cause the driver to be tested for the purpose of determining the alcohol or drug content of the driver's blood. The test shall be performed in accordance with the procedure set forth in this section and shall be performed regardless of whether the driver does or does not consent to the test.
>
> (4) The results of a test performed in accordance with subdivision (f)(1), (f)(2) and (f)(3) may be offered as evidence by either the state or the driver of the vehicle in any court or administrative hearing relating to the accident or offense subject to the Tennessee Rules of Evidence.

Tenn. Code Ann. § 55-10-406(d)-(f) (2012).[4]

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[4]The implied consent statute has been amended since the offense in this case, and that amendment took effect on July 1, 2013. *See* 2013 Pub. Acts, c. 154, § 6.

Here, "the statutorily created implied consent of the motorist permits the warrantless search of the motorist's breath or blood." *Humphreys*, 70 S.W.3d at 761. Thus, "if probable cause exists to believe that (1) the suspect motorist has consumed intoxicating liquor and (2) evidence of the motorist's intoxication will be found if the blood is tested, it is unnecessary for law enforcement officers to obtain the voluntary consent of an individual motorist before administering a breath test for alcohol concentration level." *Id.* (citations omitted).

In this case, the trial court erroneously found that implied consent could not be supported because at the time of the request for a blood draw, the officer did not have reasonable grounds to believe that the defendant had been operating her motor vehicle while under the influence. (I, 94-95.) The proof established that Officer Strzelecki had reasonable grounds and probable cause to believe that the defendant was operating a motor vehicle while intoxicated and that proof of such intoxication would be shown through analysis of the defendant's blood. Specifically, the officer knew that the defendant had been the driver of a car involved in a single-vehicle crash. (II, 1-3, 9.) The defendant ran the car head-on into a light pole, and the crash resulted in the deaths of two of the defendant's passengers. (I, 25; II, 1-2, 16.) When Officer Strzelecki arrived at the hospital, he spoke to Page and learned that the defendant had been driving at the time of the collision. (II, 14.) In speaking to the defendant, Officer Strzelecki noticed a smell of alcohol about the defendant's person. (I, 95; II, 16.) The defendant admitted to the officer that she had been driving and that everybody in the car, including herself, was drinking. (II,

3, 9.) Additionally, Officer Strzelecki performed the horizontal gaze nystagmus test on the defendant, and her performance "indicated that she was impaired." (I, 95; II, 8-9; IV, 47.) Under these circumstances, the defendant's blood was lawfully drawn pursuant to Tenn. Code Ann. § 55-10-406(f)(1).

In this case, although the arresting officer did not obtain a warrant to obtain a blood sample from the defendant, he had no reason to do so as he had both the defendant's actual and implied consent. The defendant's response "Do what you have to do" provided actual consent to the request given. Furthermore, the defendant gave implied consent to the blood draw by operating a motor vehicle, and the request for a blood sample was properly made. The trial court should not have suppressed the results of the blood alcohol test.

II. ADDITIONALLY, BASED UPON THE FACTS BEFORE THE TRIAL COURT, THE WARRANTLESS BLOOD DRAW WAS SUPPORTED BY EXIGENT CIRCUMSTANCES.

Another exception to the warrant requirement includes "exigent circumstances." *Schmerber v. California*, 384 US. 757, 770 (1966). "[T]he natural dissipation of alcohol in the blood may support a finding of exigency in a specific case." *McNeely*, 133 S.Ct. at 1563. However, "it does not do so categorically. Whether a warrantless blood test of a drunk-driving suspect is reasonable must be determined case by case based on the totality of the circumstances." *Id.* "Warrants inevitably take some time for police officers or prosecutors to complete and for magistrate judges to review." *Id.* at 1562. "[B]ecause an individual's alcohol level gradually declines soon after he stops drinking, a significant delay in testing will

negatively affect the probative value of the results." *Id.* at 1560-61. "[T]echnological developments that enable police officers to secure warrants more quickly, and do so without undermining the neutral magistrate judge's essential role as a check on police discretion, are relevant to an assessment of exigency. That is particularly so in this context, where BAC evidence is lost gradually and relatively predictably." *Id.* at 1562-63.

Although not the focus of the suppression hearing and not addressed by the trial court, the blood test results are admissible at the defendant's trial based upon the exigent circumstances exception to the warrant requirement. Rural/Metro Ambulance received information about the defendant's car crash at 8:43 p.m. on October 29, 2011. (I, 19; IV, Ex. 1, Vol. 1.) The ambulance service arrived at the crash scene at 8:51 p.m. (I, 19; IV, Ex. 1, Vol. 1.) Officer Strzelecki first received a page regarding the defendant's car crash around 9:04 p.m. (IV, 50-51.) He then immediately responded to the hospital. (II, 2-3, 12-13; IV, 51.) The defendant had to be extracted from the vehicle and then flown by Lifestar to the UT Medical Center, where she arrived was received in the emergency department at 9:36 p.m. (I, 25-33; IV, Ex. 1, Vol. 1.)

When Officer Strzelecki arrived at the hospital, he was not 100 percent certain which surviving occupant was the driver. (II, 14.) The officer was able to speak to Page first, who medical records show did not arrive at the hospital until 9:53 p.m. (IV, 51.) Officer Strzelecki learned from Page that the defendant was the driver, and he obtained consent from Page for a blood draw. (II, 14.) At 10:25 p.m.,

the defendant went to x-ray and was noted to be "more alert." (I, 35; IV, Ex. 1, Vol. 1.) At that time, Officer Strzelecki had a brief discussion with the defendant and learned "that she had been driving and that everybody in the car had been drinking." (II, 3.) The officer performed the horizontal gaze nystagmus test on the defendant, the results of which indicated that she was impaired. (II, 3, 8-9.) The officer obtained the defendant's consent, and records indicate that the defendant's blood was drawn at 10:50 p.m.—a little over two hours after the initial call came in about the wreck. (I, 37; IV, Ex. 1, Vol. 1.)

Based on the natural dissipation of alcohol in the blood, as well as the time it took for the defendant to be extracted from her car, flown to the hospital and treated in the emergency room, and the time it took the arresting officer to get to the hospital and investigate the circumstances of the crash, there was no time to seek a warrant. "[B]ecause an individual's alcohol level gradually declines soon after he stops drinking, a significant delay in testing will negatively affect the probative value of the results." *McNeely*, 133 S.C.t at 1560-61; *see also Schmerber*, 384 US. at 770-71 (stating that, "where time had to be taken to bring the accused to a hospital and to investigate the scene of the accident, there was no time to seek out a magistrate and secure a warrant"). Thus, exigent circumstances existed to support the warrantless blood draw, and the trial court erred in suppressing the results of the blood alcohol testing.

CONCLUSION

For the reasons stated, the judgment of the trial court should be reversed.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that a true and exact copy of the foregoing has been sent by first-class mail, postage prepaid to Jim Owen, Assistant Public Defender, 1101 Liberty Street, Knoxville, TN 37902, on this the 7th day of April, 2014.

DESHEA DULANY FAUGHN
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cc: [by email]

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